Class F1: Introduction to Law and the Indian Legal System

Phase 0: Foundations | Law Refresher Course | Start here, as a fresher

What you will learn today: what law is, the types of law, where law comes from, how a law is made, how the courts are arranged, the everyday legal words, and how to read a bare Act and a case citation. Everything else in the course builds on this class.

1. What Is Law?

In simple words, **law is a set of rules made or recognised by the State, which everyone must follow, and which the State enforces through courts and penalties.**

Two classic definitions you should know:

Jurist	Definition	Key idea
John Austin (English)	"Law is the **command of the sovereign**, backed by a **sanction**."	Law = an order from the ruler + a punishment for disobeying
John Salmond	"Law is the body of principles **recognised and applied by the State in the administration of justice**."	Law = what the courts actually apply

Why do we need law?

- **Order:** without rules, the strongest person would win every dispute.
- **Justice:** to give each person what is due to them.
- **Rights:** to protect your life, property and freedom.
- **Certainty:** so that people and businesses can plan. You take an advance for a hall booking because the law will enforce the agreement.

Law, morality and custom

	Law	Morality	Custom
Made by	The State	Society and conscience	Long practice of a community
Enforced by	Courts, police, penalties	Shame, guilt	Social pressure
Example	Not paying tax is punishable	Lying to a friend is wrong	Giving gifts at weddings

Some rules are both law and morality (do not steal). Some are only morality (help the poor). A custom becomes law when courts recognise it as **ancient, certain, reasonable and continuous**.

2. Types (Classification) of Law

A. Civil law vs Criminal law (the most important division)

Point	Civil law	Criminal law
Purpose	Settle disputes between persons; give a **remedy**	**Punish** wrongs against society
Who starts the case	The injured person (**plaintiff** or **petitioner**)	The **State** (through the police and the Public Prosecutor), or a **complainant**
The other side is called	**Defendant** or **respondent**	**Accused**
Case name looks like	*Ramesh v. Suresh*	*State of Andhra Pradesh v. Suresh*
Standard of proof	**Preponderance of probabilities** (more likely than not)	**Beyond reasonable doubt**

Point	Civil law	Criminal law
Result	Decree: money, possession, injunction, declaration	Conviction and sentence (jail, fine), or acquittal
Main laws	CPC, Contract Act, Transfer of Property Act	BNS, BNSS, BSA
Starts with	A **plaint** (suit) or **petition**	An **FIR** or a private **complaint**

Trick: "Civil = **compensation**; Criminal = **punishment**." Civil cases are about *my right*; criminal cases are about *society's peace*.

B. Substantive law vs Procedural law

Substantive law	Procedural law
Creates and defines **rights and duties**	Lays down the **method** to enforce those rights
What the law is	*How* to go to court
Contract Act, BNS, Transfer of Property Act	CPC, BNSS, Limitation Act

Trick: substantive law is the **destination**; procedural law is the **road map**.

C. Other classifications

Type	Meaning	Example
Public law	Between the State and citizens	Constitutional law, criminal law, tax law
Private law	Between private persons	Contract, property, family law
Municipal (national) law	Law within one country	All Indian Acts
International law	Between nations	Treaties, UN conventions
Codified law	Written in an Act	The Contract Act
Uncodified law	Developed by courts and custom	Most of the law of torts
Personal law	Depends on a person's religion	Hindu law, Muslim law

3. Sources of Law in India

1. **Constitution:** the supreme source. Any law against it is void (Article 13).
2. **Legislation (statutes):** laws made by Parliament and State Legislatures. These are the main source today.
3. **Delegated (subordinate) legislation:** rules, regulations and notifications made by the government or bodies such as SEBI and the RBI under the power given by an Act.
4. **Judicial precedent:** decisions of higher courts.
   - **Article 141:** the law declared by the Supreme Court binds all courts in India.
   - A High Court's decisions bind all courts below it in that State.
5. **Custom:** recognised customs, especially in family and property matters.
6. **Personal law and equity:** religious laws in family matters; fairness ("justice, equity and good conscience") where no law exists.

Precedent: two words you must know

- **Ratio decidendi:** the *reason for the decision*. This is the binding part of a judgment.
- **Obiter dicta:** "things said by the way". Remarks not needed for the decision. They are only persuasive, not binding.
- **Stare decisis:** "stand by what has been decided". Courts follow earlier decisions on the same point.

Trick: the **ratio** is the **root**, the **obiter** is the **ornament**.

4. A Short History (just the milestones)

Year	Event
1726	Charter creating **Mayor's Courts** in Madras, Bombay and Calcutta: the start of English-style courts
1774	**Supreme Court at Calcutta** set up under the Regulating Act, 1773
1834	First **Law Commission** under Lord **Macaulay**; it drafted the Indian Penal Code
1860–1882	The great codes: IPC (1860), Evidence Act (1872), Contract Act (1872), Transfer of Property Act (1882)
1861	**Indian High Courts Act**: High Courts at Calcutta, Bombay and Madras
1908	Present **Code of Civil Procedure**
1937	**Federal Court** of India
26 Jan 1950	**Constitution** comes into force; the **Supreme Court of India** begins on 28 Jan 1950
1 Jan 2019	**High Court of Andhra Pradesh** begins functioning at Amaravati
1 July 2024	New criminal laws (BNS, BNSS, BSA) replace the IPC, CrPC and Evidence Act

India follows the **common law** system inherited from England: judges' decisions are a major source of law, alongside written Acts.

5. The Three Organs of the State

Organ	Role	In India
Legislature	Makes laws	Parliament (Lok Sabha, Rajya Sabha, President); State Legislatures
Executive	Implements laws	President or Governor, Council of Ministers, government departments, police
Judiciary	Interprets laws and decides disputes	Supreme Court, High Courts, subordinate courts

How a central law is made (Bill to Act)

1. A **Bill** (a draft law) is introduced in Parliament. A **Money Bill** can be introduced only in the Lok Sabha.
2. It is debated and passed by **both Houses**.
3. The **President gives assent** (Article 111). The Bill now becomes an **Act**.
4. It is published in the **Official Gazette**.
5. It **comes into force** on the date stated in the Act or notified by the government. This is why the BNS was passed in December 2023 but came into force on 1 July 2024.

Ordinance: when Parliament is not in session, the President (Article 123) or a Governor (Article 213) can issue an ordinance with the force of law. It lapses unless approved within **six weeks** of the legislature reassembling.

6. The Courts and Where Cases Go

Level	Civil side	Criminal side
Top	**Supreme Court of India**	Supreme Court of India
State	**High Court** (Amaravati, for AP)	High Court
District	**District Judge**	**Sessions Judge** (serious offences such as murder)
Middle	**Senior Civil Judge**	**Chief Judicial Magistrate**
Base	**Junior Civil Judge**	**Judicial Magistrate First Class**

- Which civil court hears a suit depends on the **value of the suit** (pecuniary jurisdiction) and the **place** (territorial jurisdiction).
- **Special forums:** Consumer Commissions (District, State, National), Family Courts, Motor Accident Claims Tribunal (MACT), Debts Recovery Tribunal (DRT), NCLT, RERA, Lok Adalats.

- **Writs:** a person whose fundamental or legal rights are violated by the State can go directly to the High Court (Article 226) or the Supreme Court (Article 32).

7. Everyday Legal Words (Glossary)

Term	Meaning
Suit	A civil case started by filing a plaint
Plaint	The written statement of the plaintiff's claim that starts a suit
Written statement	The defendant's written reply to a plaint
Petition	An application to a court asking for relief (e.g. writ petition, divorce petition)
Plaintiff / **Defendant**	The person who files a suit / the person sued
Petitioner / **Respondent**	The person who files a petition or appeal / the opposite party
Appellant	The person who files an appeal
Complainant / **Accused**	The person who complains of a crime / the person charged with it
Cause of action	The set of facts that gives a person the right to sue
Jurisdiction	The power of a court to hear a particular case
Vakalatnama	The document by which a client authorises an advocate to act for them
Affidavit	A written statement of facts sworn before an authorised officer
Summons	A court's order requiring a person to appear
Warrant	A court's order to arrest a person or search a place
Bail	Release of an accused person from custody, on conditions, until trial
Ex parte	In the absence of the other party
Interim / **interlocutory**	Temporary, until the final decision
Injunction	A court order to do or not do something
Stay	A court order stopping a proceeding or an order temporarily
Adjournment	Postponing a hearing to another date
Judgment	The judge's reasons for the decision
Decree	The formal final result of a civil suit
Order	Any decision of a court that is not a decree
Appeal	Asking a higher court to change a lower court's decision
Cause title	The heading of a case showing the court, case number and parties
Prayer	The paragraph at the end of a plaint or petition asking for specific relief
Bare Act	The text of an Act alone, without commentary

8. How to Read a Bare Act

Every Act follows a standard layout:

1. **Long title and Preamble:** the purpose of the Act.
2. **Section 1:** short title, extent (where it applies) and commencement (when it starts).
3. **Section 2 (usually): definitions**. Always read these first.
4. **Main sections:** grouped into Chapters or Parts.
5. **Schedules:** forms, lists, tables at the end. In the CPC, the 51 Orders are in the First Schedule.

Parts of a section

Part	How to spot it	What it does
Section / sub-section	S.138, S.2(1)	The main rule
Clause	(a), (b), (c)	Items within a sub-section
Proviso	Starts with **"Provided that"**	An **exception or condition** to the main rule
Explanation	Starts with **"Explanation"**	**Clarifies** the meaning of the rule
Illustration	Starts with **"Illustration"**	A worked **example** (common in the Contract Act and BSA)
Non obstante clause	**"Notwithstanding anything contained in..."**	This section **overrides** other provisions

"Shall" usually means **mandatory**; **"may"** usually means **discretionary**. Courts sometimes read them differently depending on context, and you will learn this in Class F5.

9. How to Read a Case Citation

Example 1: *Kesavananda Bharati v. State of Kerala*, **(1973) 4 SCC 225**

- *Kesavananda Bharati*: the **petitioner** (the person who brought the case)
- **v.**: "versus"
- *State of Kerala*: the **respondent**
- **(1973)**: year of the report
- **4**: volume number
- **SCC**: the law report (*Supreme Court Cases*)
- **225**: the page where the judgment begins

Example 2: *Maneka Gandhi v. Union of India*, **AIR 1978 SC 597**

- **AIR** = *All India Reporter*; **1978** = year; **SC** = Supreme Court; **597** = page.

Neutral citation (new): since 2023 the Supreme Court gives every reported judgment a number such as **2023 INSC 123**. It is free and identifies the judgment without a paid law report.

Free sources: Supreme Court and High Court websites, **India Code** (indiacode.nic.in) for bare Acts, and Indian Kanoon for judgments.

10. Latin Maxims to Start With

Maxim	Meaning
Ignorantia juris non excusat	Ignorance of the law is no excuse
Ubi jus ibi remedium	Where there is a right, there is a remedy
Audi alteram partem	Hear the other side (natural justice)
Nemo judex in causa sua	No one should be a judge in their own case
Actus non facit reum nisi mens sit rea	An act alone does not make a person guilty unless the mind is also guilty
Res judicata	A matter already decided cannot be re-litigated

11. One Problem, Three Branches of Law (worked example)

A customer books **Sampradaya Hall** and gives a cheque for the balance of ₹1,50,000. The cheque **bounces**.

Branch	What you can do	Parties	Where
Criminal (NI Act, Section 138)	Send a legal notice within **30 days** of the bank's return memo. If the customer does not pay within **15 days** of receiving it, file a complaint within the **next one month**. Punishment: up to **2 years** in prison, or a fine up to **twice the cheque amount**, or both.	You = **complainant**; customer = **accused**	Judicial Magistrate, Nandyal
Civil (CPC, Contract Act)	File a **suit for recovery** of ₹1,50,000 with interest, or a **summary suit** under Order XXXVII	You = **plaintiff**; customer = **defendant**	Civil court, depending on value
Consumer (Consumer Protection Act)	If *you* failed to provide the promised service, the *customer* can complain against you	Customer = **complainant**; you = **opposite party**	District Consumer Commission

Lesson: one set of facts can give rise to civil, criminal and consumer cases at the same time. A good advocate chooses the best remedy, or a combination of them.

Class F1 Test (20 marks)

Part A: one-line answers (1 mark each)

1. Give Austin's definition of law.
2. What is the standard of proof in a criminal case?
3. Which Article makes Supreme Court decisions binding on all courts in India?
4. Give one example each of substantive and procedural law.
5. What is the binding part of a judgment called?
6. Who gives assent to a central Bill to make it an Act?
7. What does a **proviso** begin with, and what does it do?
8. What is a vakalatnama?
9. In *AIR 1978 SC 597*, what does "597" stand for?
10. Translate: *Audi alteram partem*.

Part B: short answers (3 marks each)

11. Give four differences between civil law and criminal law.
12. Explain ratio decidendi and obiter dicta, with the trick to remember them.

Part C: practical problem (4 marks)

13. A guest at a wedding in **Samriddhi Hall** slips on a wet floor and breaks their leg. In the same week, a supplier steals ₹50,000 of cooking vessels from the hall.
    - (a) Which of these is mainly a civil matter and which is criminal? (2 marks)
    - (b) Name the parties in each case, using the correct legal terms. (2 marks)